

The examination is being carried out on the **following application documents**

Description, Pages

1-79 as published

Claims, Numbers

1-9 filed in electronic form on 02-07-2020

Drawings, Sheets

1/20-20/20 as published

1).

D1 discloses in Fig 1 the use of olaparib in ovarian and fallopian tube cancer who have undergone platinum based therapy.

D1, Table 1 shows that 31% of the patients selected had neither a BRCA1 not BCRA2 mutation.

This protocol would appear to fall within the scope of amended claims 1, 4, 7, 8 and 9 under Article 54 EPC.

2).

D1 does no mention the HRD status of the patients. Their selection, in claims 2 and 3, can therefore be regarded as novel under Article 54 EPC. The application, paragraph 260 states that the treatment outcomes were regardless of HRD status. Hence no technical effect can be associated with this selection, which cannot therefore be regarded as inventive under Article 54 EPC.

Datum
Date 06.05.2021
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Sheet 2
Feuille

Anmelde-Nr:
Application No: 17 821 262.7
Demande n°:

3).

Claims 5 and 6 relate to the replacement of the compound of D12 with niraparib. There appears to be no evidence in the application comparing this alternative use with that of D1. No inventive step can therefore presently be recognised in these claims under Article 56 EPC.

4).

According to the Board of Appeal, T1898/06, the term "derivative" in claims 4 is unclear under Article 84 EPC.